



Forthcoming judgments and decisions

The European Court of Human Rights will be notifying in writing two judgments on Tuesday 5 November 2019 and 29 judgments and / or decisions on Thursday 7 November 2019.

*Press releases and texts of the judgments and decisions will be available at **10 a.m.** (local time) on the Court's Internet site (www.echr.coe.int)*

Tuesday 5 November 2019

[Herbai v. Hungary \(application no. 11608/15\)](#)

The applicant, Csaba Herbai, is a Hungarian national who was born in 1974 and lives in Budapest.

The case concerns the applicant's complaint of a breach of his right to freedom of speech after he was dismissed from his post in a bank.

In 2011 the applicant was working in the human resources department of a bank, O., and was also contributing to a website which carried general articles about HR practice.

In February of that year the bank dismissed the applicant on the grounds that his website articles had breached its confidentiality standards and infringed its financial interests. It also argued that his position at the bank meant he was privy to information that could interfere with the bank's business interests if published.

Mr Herbai went to court over his dismissal, with the Kúria ultimately ruling on the case in favour of the bank, observing that his conduct could have presented a risk to his employer's business interests.

The applicant lodged a constitutional complaint that the courts had not taken account of his right to freedom of expression. The Constitutional Court rejected his complaint, finding that the website content was not protected by freedom of speech because the articles did not cover issues of public interest.

Relying on Article 10 (freedom of expression) of the European Convention on Human Rights, the applicant complains about the termination of his employment owing to the website articles.

[A.A. v. Switzerland \(no. 32218/17\)](#)

The case concerns the removal from Switzerland of A.A., an Afghan national of Hazara ethnicity, said to be born in 1996.

In March 2014 A.A. arrived in Switzerland. He applied for asylum and stated that he had left Afghanistan because of the unsafe situation in that country and his conversion from Islam to Christianity.

In February 2015 the State Secretariat for Migration (SEM) rejected this application, noting that the grounds for asylum were not credible.

In October 2016 the Federal Administrative Court confirmed the SEM's decision on the credibility of the asylum grounds, but found that the applicant's conversion in Switzerland was genuine. It was of the view that the applicant would not be exposed to serious harm in Afghanistan as a result of his conversion and ordered his removal to that country. It further held that, while the complainant could not be returned to his region of origin (Ghazni province), he could take refuge in Kabul, where

his uncles and cousins lived. His conversion to Christianity, which had occurred in Switzerland, was not a decisive factor, as it was not known to his relatives in Kabul.

In May 2017 the duty judge decided to apply Rule 39 (interim measures) of the Court's Rules of Court and requested the Swiss government not to deport A.A. to Afghanistan during the proceedings before the European Court of Human Rights.

Relying on Article 3 (prohibition of inhuman or degrading treatment) of the European Convention, A.A. alleges that he would be subjected to ill-treatment if returned to Afghanistan.

Thursday 7 November 2019

[Natig Jafarov v. Azerbaijan \(no. 64581/16\)](#)

The applicant, Natig Mehman oglu Jafarov, is an Azerbaijani national who was born in 1972 and lives in Baku.

The case concerns Mr Jafarov's arrest, pre-trial detention and confinement in a metal cage in court. His case is similar to *Rasul Jafarov v. Azerbaijan*, *Mammadi v. Azerbaijan* and *Aliyev v. Azerbaijan*.

In 2016 a political movement called Republican Alternative Civic Movement (REAL), of which he was a co-founder, decided to campaign against amendments to the Constitution proposed by a draft Referendum Act. Among other things, the changes aimed at extending the presidential term to seven years from five and introduce the post of vice-president. The referendum was set for September 2016.

In August 2016 the applicant was arrested on the criminal charges of illegal entrepreneurship and aggravated abuse of power. The charges were based on his having allegedly failed to register grants received from the United States National Endowment for Democracy for projects carried out between 2011 and 2014, placing the sums received in various bank accounts and making payments to himself and others involved in the projects in the guise of salaries and service fees.

He was placed in pre-trial detention for four months, a decision which he appealed several days later. He was held in a metal cage in the court during the appeal hearing, which confirmed the first-instance decision. In late August REAL decided to stop campaigning against the constitutional amendments, owing to the arrests of some of its members, including the applicant.

Mr Jafarov was released in early September 2016 after the prosecutor in charge of the case asked the court to discontinue the preventive measure as the grounds justifying his detention no longer existed. The referendum took place as planned and the constitutional amendments received overwhelming approval.

Relying on Article 3 (prohibition of inhuman or degrading treatment), the applicant complains that being held in a cage during his court hearing violated his human dignity and amounted to degrading treatment.

Under Article 5 §§ 1 (c), 3 and 4 (right to liberty and security / entitlement to trial within a reasonable time or to release pending trial / right to have lawfulness of detention decided speedily by a court), he complains about his arrest and pre-trial detention, in particular that there was no reasonable suspicion that he had committed a criminal offence and that the courts failed to carry out an effective review of his detention.

He also complains about his arrest under Article 18 (limitation on use of restrictions on rights) taken in conjunction with Article 5. He raises a further complaint about his arrest under Article 11 (freedom of assembly and association).

[Apostolovi v. Bulgaria \(no. 32644/09\)](#)

The applicants, Stoyan Apostolov and Milena Apostolova, husband and wife, are Bulgarian nationals who were born in 1956 and 1958 respectively and live in Haskovo (Bulgaria).

The case concerns the freezing of the couple's assets pending criminal proceedings against the husband for a banking offence and their complaint that this had made it hard for them to meet medical expenses for their severely disabled son.

In 2016 Mr Apostolov was found guilty of conducting banking business without a licence and was given a year's suspended prison sentence.

Shortly after Mr Apostolov had been charged in November 2008, the courts decided to freeze 35 bank accounts registered in his name and three of his immovable properties in order to ensure that any fine or confiscation order would be met.

He appealed against the decision to issue the freezing order in February 2009, but the courts found that the appeal had been lodged out of time.

Concurrently the applicant couple requested that the freezing order be lifted. Mr Apostolov submitted in particular that he needed to draw on at least some of the money in his bank accounts to pay for his son's medical expenses. The courts rejected his request as the criminal proceedings were still ongoing. In July 2009 the appeal court upheld that finding, but unfroze Ms Apostolova's half of the assets since the charges had only been brought against her husband.

Mr Apostolov made a second request in 2013 for the freezing order to be lifted, and all of his assets, except one immovable property, were eventually unfrozen in January 2014.

In the meantime, Ms Apostolova brought claims for damages against the authorities. Her claim against the regional court was dismissed, while one of two claims against the prosecuting authorities was allowed. The courts found that the prosecutor should have checked ownership of the assets before seeking to block them and awarded her damages for psychological distress caused by the freezing of her assets and inability to pay for her son's medical treatment.

Relying in particular on Article 1 of Protocol No. 1 (protection of property) and Article 13 (right to an effective remedy), the applicant couple complain that the freezing of their assets, both initially and over the years that followed, was unlawful and unjustified.

[Gelenidze v. Georgia \(no. 72916/10\)](#)

The applicant, Manana Gelenidze, is a Georgian national who was born in 1962 and lives in Tbilisi.

The case concerns her complaint of the unfairness of criminal proceedings brought against her for delivering an unlawful decision when she was a judge.

Ms Gelenidze was convicted in 2006 of deliberately miscalculating the prison term of a person whom she had convicted and sentenced to two years' imprisonment.

She had fled Georgia during the preliminary investigation, but was arrested on her coming back to the country in July 2009. Following her arrest, she appealed, arguing that the offence of which she had been convicted had in the meantime been decriminalised.

However, at an appeal hearing in October 2009 the Kutaisi Court of Appeal accepted the prosecutor's request to reclassify her offence to abuse of office, and amended her conviction. She was sentenced to two years' imprisonment.

She brings two complaints under Article 6 §§ 1 and 3 (a) and (b) (right to a fair trial / right to be informed promptly of the accusation against him/her / right to adequate time and facilities for preparation of defence). First, she alleges that the legal reclassification of the offence for which she had been convicted was arbitrary and, secondly, she complains that she was not given adequate

time to adjust her defence to the new charges because the prosecutor's application to reclassify her offence had been submitted on the last day of the appeal proceedings.

She also alleges under Article 7 § 1 (no punishment without law) that her amended conviction was fabricated so that she could be kept in prison.

[Porchet v. Switzerland \(no. 36391/16\)](#)

The applicant, Mathieu Porchet, is a Swiss national born in 1993. He lives in the canton of Vaud (Switzerland). In 2013 he was remanded in custody. In 2015 he was sentenced to 35 months' imprisonment, partly suspended, for endangering the lives of others and for driving a vehicle without a licence.

In this case Mr Porchet complains that he was remanded in custody for 18 days in a police custody facility instead of the 48 hours allowed by law. To compensate for the 16 days of detention in the cell reserved for police custody, the criminal court granted him an eight-day reduction in his prison sentence when he was convicted. Mr. Porchet challenged this decision, claiming financial compensation rather than a reduction in sentence. His appeal was rejected.

Relying on Article 5 § 5 (right to liberty and security / right to compensation), Mr Porchet alleges that this provision creates a direct and enforceable right to financial compensation. He complains that the Swiss courts did not grant him such redress. He adds that Swiss law provides for a right to receive compensation.

[The Court will give its rulings in writing on the following cases, some of which concern issues which have already been submitted to the Court, including excessive length of proceedings.](#)

These rulings can be consulted from the day of their delivery on the Court's online database [HUDOC](#).

They will not appear in the press release issued on that day.

Thursday 7 November 2019

Name	Main application number
Mirmotahari v. Norway	30149/19
Pantsulai v. Russia	34275/19
Akyaz v. Turkey	5517/10
Bakır v. Turkey	7453/16
Baran v. Turkey	54164/08
Bilgin v. Turkey	23639/11
Çeri v. Turkey	39389/10
Demir v. Turkey	9161/07
Doğan and Others v. Turkey	42779/13
Erdem and Others v. Turkey	38649/08
Gedik and Öktem v. Turkey	73408/10
Gezener v. Turkey	78833/12
İnceağaç and Others v. Turkey	23853/11
Mayda v. Turkey	140/13
Şahin v. Turkey	4844/09
Sargut v. Turkey	27671/12
Tamer v. Turkey	76632/17
Yalçın and Metin Polat v. Turkey	67148/09
Yıldırım v. Turkey	81779/12

Name	Main application number
Berezovskiye v. Ukraine	22289/08
Gorbatyuk v. Ukraine	1848/16
Goryanoy v. Ukraine	54630/13
Ryabinin and Shatalina v. Ukraine	33006/07
Shynkarenko v. Ukraine	64661/11
Zabara v. Ukraine	26007/17

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The European Court of Human Rights was set up in Strasbourg by the Council of Europe Member States in 1959 to deal with alleged violations of the 1950 European Convention on Human Rights.